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File No.: EXP202301249

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 9, 2022, A.A.A. and B.B.B. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against ALTERNATIVA CORELLANA INDEPENDIENTE (ACI) with NIF G31782295 (hereinafter, the respondent). In the received document, the following information is provided:

The complainants, local police officers of the City Council of Corella, are complaining against the electoral grouping of the aforementioned City Council, Alternativa Corellana Independiente (ACI), for publishing on a blog on the Wordpress platform the judgment No. 000262/2022 from the Administrative Litigation Court No. 2 of Pamplona, which contains the identifying data of the complainants' names and surnames as co-defendants, without anonymizing them.

In particular, at the web address:

<https://acicorella.com/2022/11/04/quieren-otro-jefe-de-policia-que-sea-docil-y-navarro/>, the aforementioned judgment is published, dated 04/11/22, along with a news article titled: "They want another police chief who is docile and Navarrese."

The published judgment is the result of an appeal filed by the complainants, in their capacity as Personnel Delegates in the City Council, against the resolution of the Mayor appointing a new chief of the municipal police, which was ultimately declared null in court.

The complainant alleges a total disproportion between what would be a legitimate purpose of informing the population of Corella about the judgment and the means used, consisting of its publication on the Blog without previously anonymizing it, removing the personal data of the two workers involved in the process. Furthermore, it adds that the respondent was not a party to the judicial procedure, but rather the City Council of Corella, which became aware of the judgment by virtue of its status as a governing team and electoral grouping, fraudulently using its status by publishing the judgment on its Blog.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification on February 3, 2023, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on February 14, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail on February 15, 2023, which was returned as unknown.

THIRD: On March 8, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

- The Data Inspection did not locate any legal information or information related to the privacy policy on the blog "acicorella.com." It was verified that there was content published on this blog on March 28, 2011, in which ALTERNATIVA CORELLANA INDEPENDIENTE is defined as a Neighbors' Group. It has been verified by the Data Inspection that the association ALTERNATIVA CORELLANA

INDEPENDIENTE has been registered in the Register of Associations, Foundations, and Professional Colleges of Navarre since August 30, 2004, with registration number 4896 and classified as "Neighborhood and socio-community action."

- On April 13, 2023, the Data Inspection verified that an article titled "They want another police chief who is docile and Navarrese" had been published since November 4, 2022, publicly accessible and without restrictions, on the blog "acicorella.com," which includes a link to judgment No. 000262/2022 from the Administrative Litigation Court No. 2 of Pamplona, without anonymizing, in which the identifying data of the complainants' names and surnames as co-defendants appear.

- On April 13, 2023, and April 25, 2023, a request for the following information and documentation was sent to the respondent, via electronic and postal notification respectively, resulting in both cases being unsuccessful:

- Provision of technical reports or recommendations prepared by the Data Protection Officer or by the security officer,

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regardless of their format, regarding the treatments for which information is requested, as well as the subsequent actions taken or their absence, derived from the aforementioned technical reports or recommendations.

- Privacy policy and information provided to the interested party referred to in Article 13 of the GDPR.

- Procedure enabled for those affected to oppose the publication of their personal data or to request the deletion of their data.

- Document justifying the consent of the affected individuals for the publication or, where applicable, the legal basis that would legitimize the publication (for example, if the publication is based on the legitimate interest of the data controller, "proof of balancing" indicating the existence of a prevailing legitimate interest).

- Document justifying the deletion of the data, if applicable.

- Document justifying the attention given to the right to object to the processing of personal data, if applicable.

- The decision made regarding this complaint.

- Report on the causes that led to the incident that originated the complaint.

- Report on the measures adopted to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.

- Any other information deemed relevant.

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On 17/5/2023, the aforementioned request for information and documentation was sent again to the respondent, via postal notification sent, this time, to the address provided to the Data Inspection by the City Council of Corella, having received on 8/6/2023 a letter from the respondent stating the following:

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In November 2022, the electoral group ACI published on its blog a ruling from the Administrative Litigation Court without realizing that it contained the personal data of two employees of the City Council.

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They have been alerted to the error upon receiving communication from the Spanish Agency for Data Protection (AEPD). They state that at no time did the two affected individuals contact that group requesting the deletion of the published data.

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The incident occurred due to an error by the person responsible for the publication, who realized that they had not removed the identifying data of the individuals mentioned in the ruling.

At the moment they received the communication from the AEPD, they became aware of the error and proceeded to delete the data from the blog.

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They also report that ACI is an electoral group established for a specific electoral process. Specifically, ACI was established for the previous electoral process of 2019, so with the call for elections on May 28, this group is considered extinguished.

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On 20/6/2023, the Data Inspection requested ACI to provide the following information and documentation within a period of 10 days:

1. Identifying data of the holder of said blog (Name or corporate name and NIF).
2. Privacy policy and information provided to the interested parties referred to in Article 13 of the GDPR.
3. Procedure enabled for the interested parties to oppose the publication of their personal data or to request the deletion of their data.
4. Copy of the Record of Processing Activities, risk analysis, and security measures implemented in relation to the processing of personal data.

This request was delivered to its recipient on 27/6/2023, as evidenced by the acknowledgment of receipt from the postal service, and as of the date of this report, no response has been received.

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On 12/6/2023, the Data Inspection verified that the link to ruling No. 000262/2022 from the Administrative Litigation Court No. 2 of Pamplona had been removed from the blog “acicarella.com”.
FIFTH: On October 27, 2023, the initiation agreement was notified, signed by the Director of the Spanish Agency for Data Protection on October 16, 2023, where it was agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent submitted a written statement of allegations in which, in summary, it stated that “The Group did not receive requests until the agency contacted the City Council in demand of an address to notify ACI, and when they were sent to the correct address, the citations and requests made were collected.

Thus, and as evidenced in the facts of the resolution itself, upon the first receipt of the request, 17 May 2023, received by this party on 24 May, a response was provided including the statement of allegations in which an “error of action” is acknowledged, that the affected individuals have not requested rectification, and that upon detecting the error through the communication from the AEPD, the data was deleted from the blog where it was published, attaching the link for verification.

It was also stated that ACI is an electoral group through which the positions currently held in the City Council were accessed.

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The requests from June and July 2023 were not answered not because of an obstructive attitude, on the contrary, but because I believed I had complied with the request from the AEPD with the written allegations and the rectification of the data. Furthermore, during that time, the City Council was being established and formed, and the deadlines granted were very difficult to meet given the attention and importance of the constitution of the City Council and, once the Mayor was elected, the organization of the Corporation.

In this regard, and in compliance with what was requested, it is reported that:

Identifying data of the blog owner (ALTERNATIVA CORELLANA INDEPENDIENTE)

- Privacy policy and information provided to the interested parties referred to in Article 13 of the GDPR.

Both complainants are officials, municipal police officers, in the City Council of Corella. Both filed a

claim within the labor sphere, and the judgment rendered in this area was the one published in the Blog, just as the news of such judgment was published due to its relevance in various media outlets. Consequently, and for the purposes of compliance with the provisions of Article 13, the officials are subject to the municipal data protection policy, and the City Council has files and a data protection officer.

Attached is the contract with the expert and the document of actions with municipal employees regarding their data and rights.

- Procedure established for interested parties to oppose the publication of their personal data or to request the deletion of their data.

This is the procedure established by the City Council, as we reiterate, they are officials.

Attached is the procedure indicated by the data protection officer.

- Copy of the activity register of treatments, the risk analysis, and the security measures implemented in relation to the processing of personal data.

Article 6 of Organic Law 3/2018, LOPD, regulates consent for the processing of personal data in the case of a contractual relationship.

In this case, the requirement to understand that such consent exists is met, and the publicity of their data has been clearly related to the maintenance, development, and control of the contractual relationship.

In fact, they themselves have publicized numerous pieces of information and opinions on social media and in the press regarding the contractual relationship they have with the City Council and with the Mayor as their superior.

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Furthermore, the twelfth additional provision establishes that the processing of personnel records in the public sector will be understood as carried out in the exercise of the public powers conferred on their responsible parties and has an additional regulation that allows for differentiated processing. According to the provisions of Article 65 of Organic Law 3/2018, after the admission of the procedure and the written allegations, it was understood that compliance with the regulations had been achieved so that, although they were officials, the identifying data was removed, a drastic measure in order to resolve the complaint of the interested parties.

Therefore, their right to rectification was considered attended to since there was no intention to infringe the regulations or for them to be identified, but merely to provide public information about the result of a labor conflict that had previously been publicized by both parties.

Although it is evident that, due to their many previous public statements, and because of the small population of Corella, which does not reach 10,000 inhabitants, anyone reading the news of the judgment, not only in the blog, knew which officials were being referred to.

Therefore, considering the complaint of the officials as a request for rectification, it was attended to from this party's perspective by immediately proceeding to remove their data from the aforementioned publication.

We therefore consider that no infringement has been committed by ACI, since on one hand, a response was given to the AEPD regarding the request made, confirming that the identification of data in the blog had been removed, and on the other hand, the second request was not answered because it was believed that the situation had already been resolved and, above all, because the dates on which it occurred did not allow for a response.

This non-response cannot be classified as stated in the resolution since it is demonstrated that there is no resistance or obstruction to the AEPD and its function, and consequently, the proposed sanction is neither appropriate nor justified as it does not correspond to facts that meet the specified classification. In the event that it is understood that there is an infringement for lack of response to the AEPD (which we already state we do not believe), it would be for mere formality, with no intentionality, which implies

a very minor offense given the null impact on the rights of the officials and the action, based on the request from the AEPD, to immediately resolve the situation by removing the data from the blog. The willingness shown by this representative of ACI is not at all, and this is evident, to disobey the AEPD, nor to be rebellious in providing information, quite the opposite, and through this document and its attachments, we proceed to comply exhaustively with what was requested in the received resolution.

For the reasons stated, I request that this document and its attachments be accepted, that the allegation procedure be considered completed, and that, in virtue of this, following the necessary legal procedures, a proposal be issued by the Instructor of the file to agree to

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to raise to the Director of the Data Protection Agency, the file of the sanctioning procedure for the non-existence of the typified infringement for which it is initiated."

SEVENTH: On November 27, 2023, the instructor of the procedure agreed to consider reproduced for evidentiary purposes the complaint filed by A.A.A. and B.B.B., as well as the documentation, the documents obtained and generated during the admission phase of the complaint, and the report of prior investigative actions that are part of procedure AI/00078/2023.

Likewise, the allegations to the initiation agreement of the referenced sanctioning procedure, presented by ALTERNATIVA CORELLANA INDEPENDIENTE (ACI), and the accompanying documentation are considered reproduced for evidentiary purposes.

EIGHTH: On December 11, 2023, a resolution proposal was made, which was notified electronically proposing that the Director of the Spanish Agency for Data Protection sanction ALTERNATIVA CORELLANA INDEPENDIENTE (ACI), with NIF G31782295, for an infringement of Article 5.1.c) of the GDPR, typified in Article 83.5 of the GDPR, with a fine of €500 (FIVE HUNDRED euros).

As the complained party has not accessed the resolution proposal made electronically, the notification date is considered to be December 22, 2023, in accordance with Article 43.2 of Law 39/2015 of October 1, on the Common Administrative Procedure of Public Administrations, which states that "when notification by electronic means is mandatory, or has been expressly chosen by the interested party, it shall be understood as rejected when ten calendar days have elapsed since the notification was made available without accessing its content."

ALTERNATIVA CORELLANA INDEPENDIENTE (ACI), with NIF G31782295, is a legal entity, therefore in accordance with Article 14.2 of Law 39/2015 of October 1, on the Common Administrative Procedure of Public Administrations, in any case, it is obliged to communicate electronically with Public Administrations for the completion of any procedure of an administrative process.

Although on February 23, 2023, the complained party was requested by postal means to provide an email address, to notify them of any notifications they might receive, and although the notification of the initiation agreement of this sanctioning procedure was made by postal means on October 27, 2023, the complained party has not provided an email address.

Therefore, the provisions of Article 43 of Royal Decree 203/2021, of March 30, regulation of action and operation of the Public Sector by electronic means, apply, where it is established that the notice will only be made if the interested party or their representative has communicated to the Administration an electronic device or email address for that purpose.

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Furthermore, this provision also states that the lack of this notice, which is merely informative, will not prevent the notification from being considered fully valid.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The judgment No. 000262/2022 of the Contentious-Administrative Court No. 2 of Pamplona has been published on a blog of the Wordpress platform, which contains the identifying data of the name and surnames of the complainants as co-defendants, without anonymization.

In particular, at the web address:

<https://acicorella.com/2022/11/04/quieren-otro-jefe-de-policia-que-sea-docil-y-navarro/>, the aforementioned judgment is published, dated 04/11/22, along with a news article titled: "They want another police chief who is docile and Navarro."

The published judgment is the result of the filing of an appeal by the complainants, in their capacity as Personnel Delegates in the City Council, against the resolution of the Mayor appointing a new chief of the municipal police, which was ultimately declared null in court.

SECOND: Allegations were presented on October 30, 2023, by the complained party indicating that this is an error of action, and that the data published on the blog has already been removed.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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Article 6.1 of the LOPDGDD establishes that "in accordance with the provisions of Article 4.11 of Regulation (EU) 2016/679, the consent of the data subject is understood as any manifestation of free, specific, informed, and unequivocal will by which the data subject accepts, either by means of a declaration or a clear affirmative action, the processing of personal data concerning them."

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

In turn, Article 5 of the GDPR establishes that "personal data shall be:

- a) processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency');
- b) collected for specified, explicit, and legitimate purposes, and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation');
- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');
- d) accurate and, where necessary, kept up to date; all reasonable measures shall be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay ('accuracy');
- e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes of the processing of personal data; personal data may be stored for longer periods as long as they are processed solely for archiving purposes in the public interest, scientific or historical

research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the application of appropriate technical and organizational measures imposed by this Regulation to protect the rights and freedoms of the data subject ('storage limitation');

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality').

The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it ('accountability')."

The communication of personal information constitutes the processing of personal data and as such must respect the principles of data protection, in particular, the principle of data minimization which requires that no processing operations are carried out unless absolutely necessary for a specific purpose.

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As stated by the European Data Protection Committee in its Guidelines 4/2019 regarding Article 25 Data Protection by Design and by Default Version 2.0 adopted on October 20, 2020, "(...) the fact that certain personal data are necessary for a specific purpose does not imply that all types of processing operations can be applied to such data or with any frequency (...)

III

For the determination of the infringement, it is appropriate to recall that the facts at hand involve the publication on a blog of the Wordpress platform of judgment No. 000262/2022 from the Administrative Court No. 2 of Pamplona, which contains the identifying data of the name and surnames of the claimants as co-defendants, without anonymization.

Through the investigative actions carried out by this Agency, it has been confirmed that as of April 13, 2023, there was published since November 4, 2022, publicly accessible and without restrictions, on the blog "acicorella.com" an article titled "They want another police chief who is docile and Navarrese," which includes the link to judgment No. 000262/2022 from the Administrative Court No. 2 of Pamplona, without anonymization, in which the identifying data of the name and surnames of the claimants as co-defendants are listed.

The respondent has stated that the incident occurred due to an error by the person responsible for the publication who realized that the identifying data of the individuals listed in the judgment had not been removed.

On October 30, 2023, allegations were submitted regarding the initiation agreement of the current sanctioning procedure, transcribed in the fifth antecedent, insisting that it is a "mistake in action," and that the affected parties have not requested rectification.

It is also indicated that upon detecting the error through the communication from the APD, the data was removed from the blog where it was published, attaching the link for verification, thus indicating that there is no resistance or obstruction to the AEPD in their actions.

However, the respondent states that in the event that it is understood that there is an infringement due to lack of response, it would be merely formal, without any intent, which implies a very minor offense given the negligible impact on the rights of the officials and the action, based on the AEPD's requirement, to immediately resolve the situation by removing the data from the blog.

In response to such allegations, the AEPD must indicate that as of June 12, 2023, it has been verified by the Data Inspection that the link to judgment No. 000262/2022 from the Administrative Court No. 2 of Pamplona has been removed from the blog "acicorella.com."

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Therefore, after analyzing the facts at hand, the AEPD considers that the respondent would have violated Article 5.1 c) of the GDPR, as indicated in legal basis II since the respondent spontaneously acknowledges their guilt and has proceeded to rectify the irregular situation diligently, which is taken into account when imposing the fine for the infringement committed.

IV

Article 83.5 of the GDPR establishes that infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; Article 72.1 a) of the LOPDGDD states that “based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which imply a substantial violation of the articles mentioned therein and in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

V

Article 58.2 of the GDPR provides as follows: “Each supervisory authority shall have all of the following corrective powers indicated below:

d) to order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified period;

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

In light of this, the respondent is ordered to take the necessary actions within the designated period to ensure that the processing of the personal data used complies with the provisions of the GDPR.

VI

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for infringements of this Regulation...

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indicated in sections 4, 9, and 6 shall be effective, proportionate, and dissuasive in each individual case.”

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, section 2, letters a) to h) and j).

In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the data processing operation in question as well as the number of affected parties and the level of damages they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;
h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
i) when the measures indicated in Article 58, section 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
Regarding section k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

According to the transcribed provisions, it is considered appropriate to calibrate the sanction to be imposed according to the following criteria established in Article 76.2 b) of the LOPDGDD, relating to the connection of the infringer's activity with the processing of personal data.

For the purpose of setting the amount of the sanction to be imposed in the present case on the entity claimed for an infringement classified in Article 83.5 of the GDPR, it is appropriate to calibrate the sanction to be imposed on the claimed entity and set it at the amount of €500 in accordance with Article 58.2 of the GDPR.

Therefore, in accordance with the applicable legislation and having assessed the criteria for calibrating the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ALTERNATIVA CORELLANA INDEPENDIENTE (ACI), with NIF G31782295, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, a fine of €500.00 (FIVE HUNDRED euros).

SECOND: TO NOTIFY this resolution to ALTERNATIVA CORELLANA INDEPENDIENTE (ACI).

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

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Upon receiving the notification and once it becomes executive, if the date of execution falls between the 1st and the 15th of each month, inclusive, the deadline for making voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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